State vs Mohd. Shoaib on 23 September, 2025

IN THE COURT OF MS. GEETANJALI
ADDITIONAL SESSIONS JUDGE (FTC)- 03; SOUTH EAST
DISTRICT SAKET COURTS: NEW DELHI

S.C. NO.: 92/2020
FIR NO.: 1591/2015
PS: JAMIA NAGAR
U/S.: 307/34 IPC and 27 of the Arms Act.
CNR: DLSE01-001443-2020

THE STATE

VERSUS

MOHD. SHOAIB
S/O SH. MOHD. SHAMIM AHMED
R/O. 252/5, 2ND FLOOR, ZAKIR NAGAR,
JAMIA NAGAR, NEW DELHI.

... ACCUSED

DATE OF INSTITUTION	:	20.02.2020
ORDER RESERVED ON	:	22.09.2025
ORDER DELIVERED ON	:	23.09.2025

JUDGMENT

1. The accused Mohd. Shoaib is facing trial for the offence U/s. 307/34 IPC and 27 of the Arms Act.

BRIEF FACTS

2. The case of Prosecution is that on 19.11.2015 on the receipt of DD No.31-A regarding firing of bullet, SI Varun alongwith Ct. Mahesh reached at the spot i.e. R-227, gali no. 4, Jogabai Extension, SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 16:25:42 +0530 New Delhi where they came to know that injured Arshad was shifted to the hospital. Thereafter SI Varun went to AIIMS Trauma center and collected his MLC as per which doctor declared him fit for statement. Thereafter friend of injured Arshad namley Sh. Mohsin wrote the complaint on his dictation wherein he has stated that " on 19.11.2015 at about 10:30 pm accused Shoaib called him on his mobile number and asked him to reach near Altaquwa Masjid, Jogabai Extn for returning his borrowed amount; that he went to Altaquwa Masjid Jogabai Extn. where accused alongwith two associates were already present and as soon as he reached there accused started misbehaving with him and abused him and threatened by saying "aaj tujhe jaan se mar denge" and told his associates to catch hold of him; that two associates of accused caught hold of him and accused took out gun from his pant waist and placed the same on his chest; that he fired on his chest but missed the same since he tried to free from their clutches and in that process the bullet hit on his

right hand; that accused exhorted his associates "pakado pakado isse goli thik se nahi lagi ise"; that blood started oozing from his wound and somehow he reached his house where his wife Mehtab called at 100 number; that PCR came to his house and he was taken to AIIMS Trauma centre". On the statement of injured, the present FIR was registered u/s. 307/34 IPC and 27 of the Arms Act.

3. On the basis of charge-sheet so submitted before Ld. Metropolitan Magistrate, cognizance was taken by the Ld. Metropolitan Magistrate and after compliance with the provisions of Section 207 Cr.PC, the case was committed to the Court of Sessions SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:

and was assigned to this Court.

CHARGE

4. After hearing arguments on point of charge and finding a prima facie case, requisite charges U/s. 307/34 IPC and 27 of the Arms Act was framed against accused to which he pleaded not guilty and claimed trial.

PROSECUTION EVIDENCE

5. In support of its case, the prosecution has examined as many as twelve witnesses.

5.1. PW-1 Sh. Mohsin is the public witness in the present case and his testimony shall be discussed in the later part of the judgment. 5.2. PW-2 Ct. Naveen Kumar is the police witness in the present case and he has deposed that "on 15.11.2018 on the receipt of secret information IO constituted a raiding party alongwith him and secret informer and they went to Kalindi Kunj Parking where he had asked some public persons to join the raiding party but they refused and left the spot; that accused was arrested on the identification of the secret informer vide arrest memo Ex.PW2/A and personally searched vide personal search memo Ex.PW2/B; that IO recorded the disclosure statement of accused which is Ex.PW2/C; that IO prepared the pointing out memo at the instance of accused which is Ex. PW2/D". He was cross-examined by Ld. Defence Counsel. 5.3. PW-3 ASI Mahesh is the police witness in the present case and he has deposed that "on 19.11.2015 on the receipt of DD no. 31 A regarding firing incident he alongwith SI Varun reached at R-227/4 Jogabai Extension, Jamia Nagar, Delhi where they came to know that SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB Digitally signed by GEETANJALI GEETANJALI Date:

2025.09.23 16:26:04 +0530 injured was taken to the AIIMS hospital by the PCR; that thereafter he alongwith SI Varun went to AIIMS Hospital where injured Arshad was examined by the IO and friend of the injured namely Mohsin wrote down his complaint at his instance and handed over to the IO; that on the basis of complaint, IO prepared the rukka and handed over to him registration of case; that he got registered the case and came back to AIIMS Trauma Center; that he handed over the

rukka and FIR to IO; that the sealed parcel of exhibits were handed over to IO by the Doctor and the same were seized by the IO vide seizure memo Ex.PW3/A; that the sealed parcel of the clothes with sample seal were handed over to IO by doctor; that the same was seized by IO vide seizure memo Ex.PW3/B and were deposited in malkhana". He was cross-examined by Ld. Defence Counsel.

5.4. PW-4 Dr. Krishna Kumar Singh, Sr. Resident, AIIMS has deposed that "on 16.11.2018 he received a request for subsequent opinion from ASI Bhagwan Singh, PS Jamia Nagar along with the MLC of patient Arshad, photocopy of discharge summary, X-ray report and radiology report; that after perusal of above said available documents he was of the considered opinion that the injury was simple in nature and could be possible by gun shot; that he had prepared the subsequent opinion dated 16.11.2018 which is Ex.

PW4/A and same was also counter signed by Dr. Sanjeev Lalwani and he has identified his signature since he signed the above said report in his presence". He was cross examined by Ld. Defence Counsel.

5.5. PW-5 Dr. Vishwash Kumar, Sr. Resident, Department of SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:

Radiology, AIIMS has deposed that "he has been deputed by Head of Department of Radiology, AIIMS Trauma centre to prove the MLC bearing no. 528515 of patient Arshad prepared by Dr. Rajesh Kumar Das which is Ex. PW5/A since Dr. Rajesh Kumar Das has left the services of hospital". He was cross examined by Ld. Defence Counsels.

5.6. PW-6 Sh. Arshad Pravez is the complainant in the present case and his testimony shall be discussed in the later part of the judgment.

5.7. PW-7 Sh. Mehtab is the public witness in the present case and her testimony shall be discussed in the later part of the judgment. 5.8. PW-8 Sh. Rajender Singh, Medical Record Clerk, AIIMS has deposed that "he has been deputed by Faculty Incharge Dr. Adarsh Kumar, MRS, AIIMS Trauma centre through Authority letter to identify the signature of Dr. Ashok Kumar, Jr. Resident, Emergency Medicine Department who has now left the services of the AIIMS and his present address is not available with the hospital; that the authority letter is Ex. PW8/X and the MLC of injured Sh. Arshad prepared by Dr. Ashok Kumar, Jr. Resident is Ex. PW8/1 bearing the signature of Dr. Ashok Kumar at point A whose signature he can identify since he had seen him signing in the official course of duty ". He was cross examined by Ld. Defence Counsels. 5.9. PW-9 Dr. Aswin, Sr. Resident, Department of Emergency Medicine, AIIMS, Delhi has deposed that "he has been deputed by Medical Superintendent to give opinion on the MLC prepared by Dr. Ashok Kumar, Jr. Resident, Emergency Medicine Department in this Digitally signed by GEETANJALI

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2025.09.23 16:26:37 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB +0530 case who has now left the services of the hospital and his present address is not available with him; that the MLC of injured Mr. Arshad was prepared by Dr. Ashok Kumar, Jr. Resident is Ex. PW8/1; that at the time of examination injured Mr. Arshad was having entry wound over lateral aspect of right arm 2X1 cm and exit wound over lateral aspect of right arm 0.5X0.5 cm. and the injury was simple in nature opined to be caused by fire arm". He was cross examined by Ld. Defence Counsels.

5.10. PW-10 SI Varun is the police witness in the present case and he has deposed that "on 19.11.2015 on the receipt of DD no. 31A regarding firing incident, he along with Ct. Mahesh went to the spot where they came to know that injured was taken to the AIIMS trauma centre; that thereafter they went to the AIIMS trauma centre after leaving beat officials at the spot; that he collected the MLC of the injured Arshad from the hospital as per which he was fit for statement; that on the instruction of the complainant/injured, his friend Mohsin present in the hospital gave a written complaint which is Ex.PW-1/A; that he prepared rukka on the basis of the complaint which is Ex.PW-9/1 and sent the same to the PS through Ct. Mahesh for registration of FIR; that in the hospital concerned doctor handed over the five exhibits of the relevant swab of the injured along with sample seal to him and he seized the same vide seizure memo which is Ex.PW-3/A; that the sealed pulanda of the cloth of the injured alongwith sample seal were also handed over to him and he seized the same vide seizure memo Ex.PW-3/B; that after the registration of FIR Ct. Mahesh returned to AIIMS Trauma Centre and handed over the SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:

copy of FIR and original rukka to him; that he prepared the site plan at the instance of injured which is Ex.PW-9/2 and deposited the case property in the malkhana of the PS Jamia nagar ". He was cross- examined by Ld. Defence Counsel.

5.11. PW-11 Insp. Kamal Kumar is the police witness in the present case and he has deposed that "on 13.03.2019 the investigation of the present case was assigned to him and he prepared the chargesheet and submitted the same before this Court for judicial verdict". He was cross-examined by Ld. Defence Counsel. 5.12. PW-12 SI Bhagwan Singh is the Investigating officer in the present case and he has deposed that "on 02.03.2018 the investigation of the present case was marked to him; that on 14.10.2018 he deposited the sealed exhibits in the CFSL Lodhi Colony and collected the acknowledgment of the case acceptance from the official; that he had also obtained the opinion on the MLC of the injured; that on 15.11.2018 accused were arrested by him from Kalindi Kunj parking and conducted his personal search by way of memos already Ex.PW-2/A and Ex.PW-2/B; that he also recorded the disclosure statement of accused which is Ex.PW-2/C; that he prepared the pointing out memo at

the instance of accused which is Ex.PW-2/D;

that accused was identified during the TIP proceedings which is A-2 (colly.) and A-3". He was cross-examined by Ld. Defence Counsel. 5.13. During the prosecution evidence, statement of the accused was recorded u/s.294 Cr.PC whereby he admitted the FIR NO. 1591/2015, DD No. 31 A dated 19.11.2015, statement recorded by Ld. MM Ms. Priti Praveva, application of IO for conducting TIP SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:

proceedings and FSL report dated 29.06.2020. Accordingly, witnesses namely Ms. Preeti Parewa, Sh. Arshad, Smt. Mehtab, HC Gulab Singh Tanwar and Prathvi Raj were dropped vide order dated 02.05.2024 and prosecution evidence was closed.

STATEMENT OF ACCUSED

6. After completion of prosecution evidence all the incriminating material was put to the accused under section 313 Cr.PC. He pleaded innocence and stated that it is a false case; that he has been falsely implicated in the present case; that he was doing construction business with partnership with Sh. Arshad; that he was demanding five to six lacs and when he denied after sometime he implicated him in the present false case but he preferred not to lead defence evidence and matter was fixed for final arguments.

ARGUMENTS

7. I have heard the Ld. Addl. PP for the State and Ld. Counsel for the accused and perused the material on record. 7.1. Ld. Addl. PP for the State argued that the complainant i.e. PW-6 Arshad and PW-1 Sh. Mohsin have fully supported the case of Prosecution and they have also explained the manner of happening of incident; that the injured i.e. PW-6 has also deposed about the weapon of offence which was used by the accused to cause injury to him; that the accused has caused injury to the complainant by bullet on his chest which itself shows about the intention of accused to kill him; that medical evidence have also supported the case of Prosecution; that accused has also been identified by the victim in the TIP proceedings which also corroborated the testimony of PW-6/ injured SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:

which support the case of Prosecution; that the FSL result is in the favour of Prosecution; as per the FSL result " the gun shot residue (lead) could be detected from the hole observed on the right arm of the shirt of the injured"; that no substantive contradiction and improvements are duly established before this Court; that it has not been established as to why accused has been falsely implicated in the present case. Therefore it has been prayed before this Hon'ble Court that accused should be convicted of the offence charged.

7.2. Per contra, it was argued by the Ld. Counsel for accused that accused has been falsely implicated in the present case; that there are contradictions in the statement of PW-1 Sh. Mohsin and PW-6 Sh. Arshad regarding presence of PW-1 at the hospital since PW-1 has deposed that "he went to hospital on receiving the information abut the gun shot injury and meanwhile police reached there and on asking of police officer, he recorded the statement of injured Babban "

> whereas PW-6 Arshad has stated in his examination in chief that " his wife called his friend Mohsin to hospital and he came to AIIMS Trauma Centre"; that it has been alleged in the FIR that the accused called the injured at Al Taqwa Masjid and he alongwith his two associates forcibly dragged him to " mitti ka teela" where he gave gun shot injury as alleged; that as per the site plan which was allegedly prepared on the instruction/ pointing of the injured, the alleged place i.e. mitti ka teela near Yamuna river is shown at point 'A' whereas PW-6 in his examination in chief has stated that he went to Altaquwa masjid Jogabai Extention where accused Shoaib alongwith his two associates were already present; that PW-6 has nowhere stated in his SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:
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> examination in chief that he was dragged by accused to mitti ka teela i.e. point A as shown in the site plan, hence the alleged site plan and place of occurrence is also doubtful and creates shadow of doubts on the Prosecution story; that PW-6 injured Arshad has stated in his cross-examination that "it is correct that IO neither found any blood on the spot nor any cartridge at the spot"; that PW-10 has stated in his examination in chief "...no blood stain marks was found at the spot at that time"; that the complainant received a phone call from mobile no. 7210925798 on his mobile no. 9540224629 made by accused Shoaib and he asked him to come to meet him near Al taqwa masjid, Jogabai however the CDR of the aforesaid mobile phone has not been placed on record by the IO deliberately as no such alleged calls has ever been made by the accused to the complainant on the alleged date and time; that PW-10 SI Varun has stated in his cross-examination that it is correct that he obtained the CDR/ location of the mobile number provided by the injured Arshad in his complaint which he stated belongs to the accused Mohd. Shoaib; that the location of the mobile number was not at the place of occurrence; that the alleged place i.e. Al taqwa masjid, Jogabai extension is densely populated area and several shops were opened at that time as alleged by the Prosecution however the Prosecution has not examined any independent public witnesses from the neighborhood of the incident; that PW-10 has stated in his cross-examination that it is correct that when we reached at the spot they inquired from the persons of the vicinity but they did not find any public/ eye witness who had seen the occurrence; that the name of the accused is nowhere mentioned in the MLC nor he SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 16:27:15 +0530 disclosed the name of the assailant to the doctor; that the religion of the injured is wrongly mentioned as Hindu who is a Muslim i.e. injured Arshad or that the person who brought the injured to the hospital has not been cited as witness by the Prosecution; that no gun shot residue was found on the swab taken from the alleged and entry wound; that the alleged weapon i.e. gun allegedly used by the accused, has not been recovered by the IO so far. In view of the same, it has been prayed that accused persons be acquitted of the offences charged.

8. I have heard the Ld. Addl. PP for the State as well as Ld. Counsel for accused and perused the record.

ANALYSIS OF EVIDENCE AND FINDINGS

9. The accused is facing trial for the offence U/s. 307/34 IPC and 27 of the Arms Act. For the sake of convenience, the relevant section is reproduced below:-

> Section 307 IPC deals with attempt to murder. It states that "Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and if hurt is caused to any person by such act, the offender shall be liable either to imprisonment for life, or to such punishment as is hereinbefore mentioned".
> 9.1. The essential ingredients required to be proved in the case of an offence u/s. 307 IPC are:-
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> (i) that the death of a human being was attempted;
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> (ii) that such death was attempted to be caused by or in SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB GEETANJALI Date:
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> consequence of the act of the accused;
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> (iii) that such act was done with the intention of causing death or that it was done with the intention of causing such bodily injury as (a) the accused knew to be likely to cause death; or (b) was sufficient in the ordinary course of nature to cause death or that the accused attempted to cause death by doing an act known to him to be so imminently dangerous that it must in all probability cause (a) death or
>
> (b) such bodily injury as is likely to cause death, the accused having no excuse for incurring the risk of causing such death or injury.

9.2. Section 27 of Arms Act deals with punishment for using arms, etc. (1) Whoever uses any arms or ammunition in contravention of section 5 shall be punishable with imprisonment for a term which shall not be less than three years but which may extend to seven years and shall also be liable to fine.

(2) Whoever uses any prohibited arms or prohibited ammunition in contravention of section 7 shall be punishable with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life and shall also be liable to fine. (3) Whoever uses any prohibited arms or prohibited ammunition or does any act in contravention of section 7 and such use or act results in the death of any other person, [shall be punishable with imprisonment for life, GEETANJALI Date:

> SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB or death and shall also be liable to fine.].
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> 9.3. It is well settled law that while appreciating the evidence of witness, the approach must be whether the evidence of a witness read as a whole appears to have a ring of truth. Once that impression is found, it is undoubtedly necessary for the Court to scrutinize the evidence more particularly keeping in view the deficiencies, draw backs and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence. Minor discrepancies on trivial matters not touching the core of the case, hyper technical approach by taking sentences torn out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the root of the matter should not ordinarily permit rejection of the evidence as a whole (Reliance placed on the judgment of Hon'ble Supreme Court of India in State of UP vs Krishna Master & Ors, decided on 03/08/2010 in Cr Appeal No. 1180/2004).
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> 10. The case of the prosecution is that accused Mohd. Shoaib alongwith two other associates namely Guddu and Bilal (not charge-

sheeted) in furtherance of their common intention abused, wrongfully restrained and fired from the country-made pistol towards the complainant Arshad thereby causing simple injury on his right arm with such intention and under such circumstance if death of Arshad is caused, accused Mohd. Shoaib may be guilty of murder. In order to prove its case the prosecution has examined injured/ complainant Sh. Arshad and other public witnesses Sh. Mohsin and Ms. Mehtab.

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> SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB OCULAR EVIDENCE 10.1. I now proceed to analyse the testimony of eye witness/ injured in the present case. Complainant/ injured Sh. Arshad was examined as PW-6 and he has deposed that "on 19.11.2015 at about 10:30 pm accused Shoaib called him on his mobile number from his mobile number and asked him to reach near Altaquwa Masjid, Jogabai Extn for returning his borrowed amount; that he went to Altaquwa Masjid Jogabai Extn where accused alongwith two associates were already present and as soon as he reached there accused started misbehaving with him and abused him; that accused scuffled with him and threatened by saying aaj tujhe jaan se mar denge and told his associates to catch hold of him; that two

associates of accused caught hold of him and accused took out gun from his pant waist and placed the same on his chest; that he fired on his chest but missed the same since he tried to free from their clutches and in that process the bullet hit on his right hand; that accused exhorted his associates "pakado pakado isse goli thik se nahi lagi ise dubara goli marani hai aur ise jaan se mar dena hain"; that blood started oozing from his wound and somehow he reached his house where his wife Mehtab called at 100 number; that PCR came to his house and he was taken to AIIMS Trauma centre; that his wife called his friend Mohsin in the hospital and his friend Mohsin wrote his complaint on his dictation which is Ex. PWI/A". He was cross-examined by Ld. Defence Counsel.

10.2. Apart from the complainant, the Prosecution has Digitally signed by GEETANJALI GEETANJALI Date:

2025.09.23 16:27:41 +0530 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB examined other public witnesses namely Sh. Mohsin and Ms. Mehtab. Sh. Mohsin was examined as PW-1 and he has deposed that "on 19.11.2015 he came to know that his neighbour Babban was admitted in AIIMS hospital and he went there where he came to know that he had suffered gun shot injury; that in the meantime police also reached there and he recorded the statement of injured Babban which is Ex.PW1/A". He was cross-examined by Ld. Defence Counsel. 10.3. Ms. Mehtab was examined as PW-7 and she has deposed that "complainant Arshad is her husband and on 19.11.2015 in between 10-10.30 PM her husband Arshad came to the house and she saw that blood was oozing from his shoulder; that she called at 100 number and PCR van took her husband to the hospital ". She was cross-examined by Ld. Defence Counsel.

10.4. Going by the above-said testimonies, complainant/ injured Arshad has deposed that he was called by the accused Shoaib on the date, time and place of incident and he reached there accordingly. In the words of PW-6 Arshad, "on 19.11.2015 at about 10:30 pm accused Shoaib called him on his mobile number from his mobile number and asked him to reach near Altaquwa Masjid, Jogabai Extn.

for returning his borrowed amount; that he went to Altaquwa Masjid Jogabai Extn where accused alongwith two associates were already present". During cross-examination the Ld. Defence Counsel disputed any money transaction between the complainant and the accused through suggestions. It was the suggested to the complainant that " it is wrong to suggest that I had not given any money to the accusedDigitally that signed by GEETANJALI GEETANJALI Date:

2025.09.23 16:27:48 +0530 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB is why I have not disclosed the date, mode of payment and reason of giving of money to the accused to the police officials. It is wrong to suggest that I created a false motive of money transaction between me and accused to falsely implicate the accused in the present case ". However this line of

> defence fails when accused himself has stated in his statement u/s. 313 Cr.P.C. that "he was doing construction business with partnership with Sh. Arshad; that he was demanding five to six lacs and when he denied after sometime he implicated him in the present false case". In view of the same, it has been established that there was money dispute between the complainant and the accused and that money demand came from the side of the complainant as admitted by the accused in his statement u/s. 313 Cr.P.C. Accused nowhere took the plea that that money demand was without any basis or was an arbitrary demand. 10.5. He has further deposed that the moment he reached there accused started misbehaving with him and abused him and from his conduct it was quite apparent that he was hell bent upon putting a full stop to his life as deposed by the complainant i.e. PW-6 Sh. Arshad.

He has deposed that "as soon as he reached there accused started misbehaving with him and abused him; that accused scuffled with him and threatened by saying "aaj tujhe jaan se mar denge" and told his associates to catch hold of him; that two associates of accused caught hold of him and accused took out gun from his pant waist and placed the same on his chest; that he fired on his chest but missed the same since he tried to free from their clutches and in that process the bullet hit on his right hand". No contrary suggestion was given to the Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 16:27:54 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB +0530 witness regarding the said fact and his testimony went unrebutted. No question was put from the side of the accused that accused neither abused the complainant nor scuffled with him nor he was caught by two of the associates of the accused nor accused took out a gun from his pant waist and place the same on his chest. This part of his testimony goes unchallenged, unrebutted and unshattered as the same has not been assailed by way of cross examination. It is well settled principle of law that if any part of testimony is not challenged in the cross examination that is deemed to be admitted. Secondly, when the said allegation was put to the accused while recording his statement u/s. 313 Cr.P.C. he stated that he was in Abul Fazal Enclave at that time but where exactly in Abul Fazal Enclave he has not specified neither he led any evidence to prove the same. 10.6. He has further deposed that " that accused exhorted his associates "pakado pakado isse goli thik se nahi lagi ise dubara goli marani hai aur ise jaan se mar dena hain"; that blood started oozing from his wound and somehow he reached his house where his wife Mehtab called at 100 number". Again it was not suggested to the witness that accused Shoaib did not utter the said words in order to cause more injury to him and the fact remained unchallenged and unrebutted. The testimony of complainant i.e. PW-6 is corroborated by the testimony of PW-7 Ms. Mehtab regarding the fact that complainant went to his house after the assault and blood was oozing from his shoulder and it was PW-7 who called at 100 number and he was taken to the hospital. From this point, the testimony of PW-1 Mr. Mohsin has become relevant. PW-6 i.e. complainant has deposed that GEETANJALI Date:

SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB his wife called his friend Mohsin i.e. PW-1 and PW-1 has also deposed that on 19.11.2015 he went to AIIMS Trauma Center where he came to know that PW-6 suffered gun shot injury. It was PW-1 who had written the complaint on a dictation of complainant in the hospital the same as deposed by PW-6 that his friend Mohsin i.e. PW-1 wrote his complaint on his dictation which is Ex. PW1/A. 10.7. The fact that there was money dispute between the complainant and the accused has also been confirmed by PW-1 Sh. Mohsin when he was asked about the reason behind the attack. He has stated that "he had inquired from injured Babban and he told him that accused had attacked him over the issue of some construction in Jasola; that he also told him that accused had to pay him Rs. five to six lacs with regard to said construction". He was cross-examined by the Ld. Defence Counsel but he failed to erode his credibility during the same and the witness stood his ground regarding whatever facts deposed by him.

10.8. During course of arguments, it was submitted by Ld. Defence Counsel that there are contradictions in the statement of PW-1 Sh.

Mohsin and PW-6 Sh. Arshad regarding presence of PW-1 at the hospital since PW-1 has deposed that " he went to hospital on receiving the information abut the gun shot injury and meanwhile police reached there and on asking of police officer, he recorded the statement of injured Babban" whereas PW-6 Arshad has stated in his examination in chief that "his wife called his friend Mohsin to hospital and he came to AIIMS Trauma Centre ". I failed to find any contradiciton in the testimony of said witnesses since PW-1 has stated GEETANJALI Date:

SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:28:08 +0530 that he went to the hospital on receiving the information and similarly PW-6 Arshad has also deposed that his friend i.e. PW-1 Sh. Mohsin was called in the hospital and the crux of the matter is that PW-1 Sh. Mohsin was present in the hospital at that time. 10.9. It was further argued that it has been alleged in the FIR that the accused called the injured at Al Taqwa Masjid and he alongwith his two associates forcibly dragged him to " mitti ka teela" where he gave gun shot injury as alleged; that as per the site plan which was allegedly prepared on the instruction/ pointing of the injured, the alleged place i.e. mitti ka teela near Yamuna river is shown at point 'A' whereas PW-6 in his examination in chief has stated that he went to Altaquwa masjid Jogabai Extention where accused Shoaib alongwith his two associates were already present; that PW-6 has nowhere stated in his examination in chief that he was dragged by accused to mitti ka teela i.e. point A as shown in the site plan, hence the alleged site plan and place of occurrence is also doubtful and creates shadow of doubts on the Prosecution story. The said argument is not casting any doubt on the incident since PW-6 has not deposed that he was called by accused Shoaib to reach at Al Taqwa masjid rather he has deposed that accused asked him to reach near Al taqwa masjid. Further the site plan Ex. PW-9/2 is also not describing the place of incident "at" Al taqwa masjid but "near" Al taqwa masjid. 10.10. It has

been further argued that PW-6 injured Arshad has stated in his cross-examination that " it is correct that IO neither found any blood on the spot nor any cartridge at the spot"; that PW-10 has stated in his examination in chief "... no blood stain marks was found Digitally signed by GEETANJALI GEETANJALI Date:

2025.09.23 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:28:14 +0530 at the spot at that time"; that the alleged weapon i.e. gun allegedly used by the accused, has not been recovered by the IO so far. The fact that no blood stain nor any cartridge was found at the spot since the injured i.e. PW-6 Sh. Arshad has deposed that he ran towards his house after accused Shoaib exhorted his associates " pakado pakado isse goli thik se nahi lagi ise dubara goli marani hai aur ise jaan se mar dena hain" and his house was situated at the distance of about 200 meters from Al taqwa masjid and in that situation it is not unusual if no blood stain was found at the spot.

10.11. It has been further argued that that the alleged weapon i.e. gun allegedly used by the accused, has not been recovered by the IO so far. However it is well settled principle of law that non recovery of the weapon of offence has no effect on the merit of the case. Mere non-recovery of weapons does not adversely affect the credibility of the prosecution story. It is now well settled that the recovery of weapon is not essential for establishing that the weapon was used in commission of the crime. In Rajender and Others Vs. State of Haryana & Anr. (2005) 9 SCC 784, the weapon of offence was not recovered by the police from the possession of any of the appellants.

Hon'ble Supreme Court however, held that this could not be a ground to throw out the prosecution case, when the same has been otherwise found to be truthful by credible evidence. 10.12. It has been further argued that as per the prosecution story it has been alleged that "the complainant received a phone call from mobile no.7210925798 on his mobile no.9540224629 made by accused Shoaib and he asked him to come to meet him near Al taqwa Digitally signed by GEETANJALI GEETANJALI Date:

2025.09.23 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:28:22 +0530 masjid, Jogabai; that the CDR of the aforesaid mobile phone has not been placed on record by the IO deliberately as no such alleged calls has ever been made by the accused to the complainant on the alleged date and time; that PW-10 SI Varun has stated in his cross- examination that it is correct that he obtained the CDR/ location of the mobile number provided by the injured Arshad in his complaint which he stated belongs to the accused Mohd. Shoaib ; that the location of the mobile number was not at the place of occurrence. It has been well proved by the ocular evidence that accused Mohd. Shoaib attacked complainant Sh. Arshad Parvez with gun and CDR has only supporting or corroborative evidentiary value. Secondly, accused did not concrete his defence by producing the said CDRs during trial.

> 10.13. It has been further argued that the alleged place i.e. Al taqwa masjid, Jogabai extension is densely populated area and several shops were opened at that time as alleged by the Prosecution however the Prosecution has not examined any independent public witnesses from the neighborhood of the incident. The present FIR was registered on the complaint of Sh. Arshad who was examined as PW-6 and he has very well explained what happened on the date of alleged incident. Not only that he withstood the rigours of cross examination and accused failed to shake his credibility during cross examination.

The testimony of the complainant cannot be discarded merely on the ground that no public persons were joined in the investigation. Secondly, it is a common that generally public is averse to become a witness in a criminal case because of the attitude of the CourtsDigitally in signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:28:28 +0530 summoning the witnesses time and again and sending them back on the ground that either the counsel for the accused was not available or accused was not there. Hence the case of the prosecution cannot be rejected on the ground of non examination of public witness or on account of non joining of public witness. (Reliance placed on judgment titled as Appabhai & Anr. Vs. State of Gujarat, IR 1988 SC
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> 696).

11. Moving forward to trace out any link, if any, of the circumstantial evidence I shall delve upon the other vital piece of evidence.

MEDICAL EVIDENCE

12. The fact that PW-6 suffered injuries on his right arm has been proved by PW-8 Sh. Rajender Singh, Medical Record Clerk, AIIMS through MLC Ex. PW8/1. The MLC described the injuries as wound 1- others entry wound, lateral accept of RT Arm, 2X1 CM and wound 2- swelling exit wound, lateral accept of RT Arm, 0.5X0.5 cm. 12.1. The opinion on the MLC was proved by PW-4 Dr. Krishna Kumar Singh, Sr. Resident, AIIMS. PW-4 has deposed that "on 16.11.2018 he received a request for subsequent opinion from ASI Bhagwan Singh, PS Jamia Nagar along with the MLC of patient Arshad, photocopy of discharge summary, X-ray report and radiology report; that after perusal of above said available documents he was of the considered opinion that the injury was simple in nature and could be possible by gun shot; that he had prepared the subsequent opinion dated 16.11.2018 which is Ex. PW4/A". Hence he has proved the nature of injury as simple and could be possibly by gun shot.

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> 2025.09.23 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:28:34 +0530 Secondly, he has described both the entry and exit wound as per the photograph in the MLC which is only in the gun shot injury. Thirdly, he has denied the suggestion that the injury mentioned in the MLC may be caused by putting iron rod or any sharp weapon. 12.2. During the course of arguments, it was submitted by Ld. Defence Counsel that the name of the accused has nowhere mentioned in the MLC nor he disclosed the name of the assailant to the doctor.

Further, the religion of the injured is wrongly mentioned as Hindu who is a Muslim i.e. injured Arshad or that the person who brought the injured to the hospital has not been cited as witness by the Prosecution. Firstly, this is not the bounden duty of doctor to describe the history in detail whose work is only to save the life. The non- mentioning of the name of the accused in the MLC is not giving any benefit to the accused. Secondly, the testimony of the person who brought the injured to the hospital is not at all relevant in deciding the guilt of the accused. It has further argued that no photograph of the entry and exit wound of injured were taken nor were placed on record. This aspect has been clarified by PW-9 Dr. Aswin who has deposed that "at the time of examination injured Mr. Arshad was having entry wound over lateral aspect of right arm 2X1 cm and exit wound over lateral aspect of right arm 0.5X0.5 cm. and the injury was simple in nature opined to be caused by fire arm ". Further during cross- examination he has admitted that entry exit wounds are not clear in the photographs which possibly lead to the conclusion that both the wounds are shown in one photograph. Henceforth it has been well proved that complainant i.e. PW-6 sustained gun shot injury. Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 16:28:41 +0530 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 12.3. It has been further argued by Ld. Defence Counsel that no gun shot residue was found on the swab taken from the alleged and entry wound. Accused has admitted the FSL result dated 29.06.2020 which is Ex. A-4. Perusal of the FSL report reveals that the clothes of the acussed i.e. full sleeves shirt, sandow baniyan and lower were also sent for examination alongwith swab taken from the right hand of the injured Arshad. The clothes of the injured were described as Ex. 1.

The FSL report concluded that:

> "on the basis of physical and chemical examination conducted in the laboratory, it is opined that gun shot residue (lead) could be detected from the hole (marked H-1) observed on the right arm of the shirt contained in Ex. No.1".

12.4. The fact that gun shot residue was detected on the shirt of the injured and not on the swab can very well be justified by the kind of the injury sustained by Arshad i.e. PW-6 which is simple injury.

DEFENCE OF THE ACCUSED

13. In his statement u/s. 313 Cr.PC, the accused has stated that it is a false case; that he has been falsely implicated in the present case; that he was doing construction business with partnership with Sh. Arshad; that he was demanding five to six lacs and when he denied after sometime he implicated him in the present false case. However he preferred not to lead any evidence. Secondly, accused has nowhere described what was the reason behind the false implication or what was the cause of enmity between them. 13.1. In order to prove the offence under section 307 IPC it Digitally is signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:28:48 +0530 essential to prove that there was intention or knowledge coupled with some overt act in execution of such intention / knowledge. It has been held by the Hon'ble Supreme Court in the matter of State of Madhya Pradesh v. Kedar Yadav, 2009 (17) SCC 280, that "for conviction under section 307 IPC it is sufficient if there is an intention or knowledge coupled with some overt act in execution of such intention/ knowledge. It is not necessary that bodily injury capable of causing death should have been inflicted. If the act, irrespective of its result is done with the intention or knowledge and under the circumstances mentioned in the sections, the same may result conviction under section 307 IPC and the accused cannot be acquitted merely because the injuries inflicted on the victim were in the nature of a simple hurt".
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> 13.2. In the matter of Satish Kumar v. State (NCT of Delhi), 2013 (5) AD (Delhi) 674 : 2013 (3) JCC 1749, the Hon'ble Delhi High Court observed as under:-
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> "8. The issue now arises is whether an offence under Section 307 IPC is made out or not. The essential ingredient of Section 307 IPC is the mensrea. Mensrea can be inferred from the kind of weapon used, the place of injury, motive etc. To bring home a charge under Section 307 IPC the onus lies on the prosecution to prove that the accused caused an act with the intention or knowledge and under such circumstances that if by that act death was caused he would be guilty of murder. In the present case on a quarrel ensuing, the Appellant caused a knife blow on the injured by a kitchen knife. The injury was caused on the back side and only one blow was given. In view of the weapon of offence and injury not being on the vital part it cannot be said that the Appellant had intention to cause murder of the injured. Further the Appellant certainly had intention to cause injury GEETANJALI Date:
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> SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB +0530 which was opined to be simple sharp in nature. Thus the Appellant is convicted for offence punishable under Section 324 IPC instead of Section 307 IPC and the conviction under Section 307 IPC is set aside".

13.3. Viewed in this light, the testimonies of the witnesses are now to be examined to consider whether the conviction can be sustained under section 307 IPC on the basis of the evidence led in the present matter. All the ingredients of Section 307 IPC ought to be fulfilled before the conviction

can be sustained under section 307 IPC. The injuries sustained, the manner of assault and the weapon used are all relevant factors. The foremost ingredients of section 307 IPC is the intention or knowledge which must precede the act attributed to the accused. In order to determine the intention of the assailant various factors and circumstances are to be considered such as the nature of injury caused, severity of the blow or its persistence, sufficiency of time and opportunity of causing more injury, intervention by others, nature of weapon and the seat of injuries. The intention / knowledge has to be gathered from the surroundings circumstances and not necessarily from the results that follow, which may result in simple or grievous injury. The onus lies on the prosecution that the accused has caused an act with intention/knowledge and under such circumstances that if by that act death was caused, he would be guilty of murder. 13.4. In the given facts and circumstances the testimony of the complainant is well corroborated by the testimonies of the other witnesses and the fact that accused assaulted the complainant has been well established. However neither it has been proved that the assault was premeditated or the assault was made with intention to commit Digitally signed by GEETANJALI GEETANJALI Date:

> 2025.09.23 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB 16:29:11 PAGE NO. 26 OF+0530 culpable homicide not amounting to murder. Secondly, PW-8 Sh. Rajender Singh, Medical Record Clerk, AIIMS has proved the MLC which is Ex. PW8/1. The MLC describes injuries as wound 1- others entry wound, lateral accept of RT Arm, 2X1 CM and wound 2- swelling exit wound, lateral accept of RT Arm, 0.5X0.5 cm . From the nature injuries it cannot be said that they were caused with avowed object or knowledge to cause death. As per MLC report of the injured/complainant there is no opinion that the injuries are such that same are likely to cause the death of the injured rather they were stated to be simple. Hence the ingredients of section 307 IPC are not fulfilled and the case falls within the ambit of section 324 IPC which deals with voluntarily causing hurt by dangerous weapons or means which is the gun in the present case.

14. In view of the aforesaid discussion, it is hereby held that Prosecution has failed to bring home the guilt of the accused for the offence punishable under section 307/34 IPC and the case falls under section 324/34 IPC. Henceforth accused Mohd. Shoaib is acquitted of offence punishable u/s. 307/34 IPC and convicted under section 324/34 IPC and Section 27 of Arms Act. Digitally signed by Typed to the direct dictation and GEETANJALI announced in the open court GEETANJALI Date:

> 2025.09.23 on this 23nd day of September, 2025 16:29:18 +0530 (Geetanjali) Addl. Session Judge (FTC)-03 South East District,Saket Courts New Delhi/23.09.2025 SC NO. 92/2020 FIR NO. 1591/2015, PS. JAMIA NAGAR STATE VS. MOHD. SHOAIB